

VENDOR AGREEMENT

This Vendor Agreement is entered into between Nimbus Software Pvt Ltd ("Buyer") and Orion Data Systems Inc ("Vendor") effective 12 January 2026.

1. SUPPLY OF GOODS

The Vendor shall supply industrial packaging materials in accordance with the specifications set out in Purchase Order Schedule A, and in accordance with the delivery schedule agreed by the parties.

2. DELIVERY

The Vendor shall deliver the goods to the Buyer's designated facility on the dates specified in each Purchase Order. Time is of the essence.

3. PRICE AND PAYMENT

The Buyer shall pay the Vendor the prices set out in Schedule B within forty-five (45) days of receipt of a valid invoice matched to a Purchase Order and delivery note.

4. WARRANTY

The Vendor warrants that the goods supplied shall conform to the agreed specifications, be free from material defects, and be fit for the intended purpose for a period of twelve (12) months from delivery.

5. LIMITATION OF LIABILITY

The Vendor's aggregate liability arising out of this Agreement shall not exceed the value of the relevant Purchase Order, subject to a carve-out for gross negligence or wilful misconduct.

6. TERMINATION

Either party may terminate this Agreement for the other party's material breach that remains uncured for thirty (30) days after written notice.

7. GOVERNING LAW

This Agreement shall be governed by the laws of India, and the courts at Bengaluru shall have exclusive jurisdiction.